

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503476	ORTEGA, AN INDIVIDUAL VS MARRIOTT INTERNATIONAL, INC.	MOTION TO COMPEL VERIFIED RESPONSES TO REQUEST FOR PRODUCTION, SET ONE, AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND/OR PLAINTIFF'S ATTORNEY OF RECORD IN THE AMOUNT OF \$857.50 BY VISTANA CALIFORNIA MANAGEMENT, INC.

Tentative Ruling:

Motion to Compel Verified Responses to Request for Production, Set One, GRANTED in part.

Plaintiff to submit verified responses, without objection, to RFPs 1-2, 4-9, 11-16, and 29-30. Request for remainder is MOOT.

Sanctions in the amount of \$335 to be paid to Plaintiff's attorney within 30 days.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507057	GUILLAUME VS CITY OF CATHEDRAL CITY	DEMURRER ON COMPLAINT OF RONDA GUILLAUME BY CITY OF CATHEDRAL CITY, MICHAEL CONTRERAS

Tentative Ruling:

Special Demurrer for Uncertainty:

Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*) A failure to specify what aspects of a complaint are uncertain generally results in a demurrer being overruled as to such grounds. (*Fenton v. Groveland Community Services Dist.* (1982) 135 Cal.App.3d 797, 809 (overruled on other grounds by *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328.)

Defendant argues that as to the 1st and 2nd causes of action, Plaintiff improperly combines multiple theories into single counts, by alleging discrimination based on her "sex, age, **and/or** disability or perceived disability—**and/or** the aggregation of two or more of those characteristics," (FAC ¶ 34) and harassment based on her "age **and/or** sex, **and/or** the aggregation of both of those characteristics." (*Id.* ¶39.) Defendants assert that these allegations obscure the elements of each claim, preserve "every theory in every combination until trial," and leaves Defendants to guess which theory they must answer.